

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff / Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

APPELLEE'S BRIEF

November 25, 2020

Marc Moszkowski, Pro Se
email: m.moszkowski@deepgulf.net
Phone: +1(850) 316 8462
Le Verdos
83300 Châteaudouble, France

Certificate of Interested Persons

(Pursuant to Federal Rules of Appellate Procedure, Rule 26-1 and 28, & FRAP 26.1)

1. Ball, Jr., Braden K., 40 Palafox Place, Suite 300, Pensacola, FL 32502, Attorney for Plaintiffs and Appellants
2. Boller, Mary Allie E., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Defendant
3. Boller, Thomas R., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Defendant
4. DeepGulf, Inc., 431 East Zaragoza Street, Unit B, Pensacola, FL 32502, Appellant
5. Frank, Michael J., Magistrate Judge, U.S. District Court for the Northern District of Florida, 1 North Palafox, Pensacola, FL 32502
6. Howard, Rustin R., 431 East Zaragoza St., Unit B, Pensacola, FL 32502, Appellant's Director
7. Johnson, Thomas J., 3520 Hopestill Road, Pensacola, FL 32503, Appellant's Director
8. Litvak Beasley Wilson & Ball, LLP, 40 Palafox Place, Suite 300, Pensacola, FL 32502, Law Firm for Appellant's Counsel
9. Lott, William B., 26588 Rolling Ridge Dr., Robertsdale, AL 36567, Appellant's former Director
10. Moszkowski, Marc, Le Verdos, 83300 Châteaudouble, France, Appellee
11. Thomas R. Boller, P.C., 150 Government Street, Suite 1001, Mobile, AL 36602, Law Firm for Defendant's Former Counsels
12. Toke Oil & Gas S.A., extinct East Timorese company devoid of East Timorese domicile, co-Appellant
13. Wetherell, T. Kent, District Court Judge, U.S. District Court for the Northern District of Florida, 1 North Palafox, Pensacola, FL 32502

Preamble

The *Pro Se* Appellee reads in the U.S. Courts website¹ that:

The appellate courts do not retry cases or hear new evidence. They do not hear witnesses testify. There is no jury. Appellate courts review the procedures and the decisions in the trial court to make sure that the proceedings were fair and that the proper law was applied correctly.

However, Appellant reiterates in his Brief his past untruthful, absurd, and groundless accusations in great detail, which leaves Appellee with no alternative to making his own statements regarding the falsity and irrationality of Appellant's case.

Although this document is Appellee's principal brief and not a reply, Appellee will address some of the statements Appellant restated from his previous pleadings.

Appellant has founded his pleadings since 2018 on a highly fictitious narrative of his own fantasy, which wrongly and also absurdly reports events that purportedly occurred as early as 2007 in the distant country of East Timor, where none of the Appellant's Directors except Appellee was ever personally involved.

¹ "*How Appellate Courts are Different from Trial Courts*", at <https://www.uscourts.gov/about-federal-courts/court-role-and-structure/about-us-courts-appeals>

Appellant reiterates past accusations while thoroughly ignoring the proceedings documented in the 3,000 page U.S. District Court case file. Appellant disregards (a) the absolute lack of authentic evidence brought by Appellant to support his case, and (b) the strong plethoric and authentic evidence produced by Appellee since November 2017 to invalidate Appellant's claims.

It is as if Appellant believed that the relentless repetition of falsities will somehow remove the perversion of truth, or that Appellee will finally succumb under Appellant's avalanche of unrelenting bad faith.

On August 10, 2020, Appellee filed a personal lawsuit² against extant Appellant's two Directors in the Circuit Court in and for Escambia County, Florida, for one count of malicious prosecution, one count of abuse of process, one count of breach of contract, nine counts of fraud, one count of civil conspiracy, and one count of perjury.

The sheer absurdity of Appellant's unsupported accusations, which not only rest on no authentic evidence whatsoever, but also are based on a false and fictional historical narrative, makes it very difficult for Appellee, whose only legal training is self-administered, to find relevant and plausible precedents in the legal literature.

² Moszkowski vs Howard and Johnson, Case No. 2020 CA 001021

Appellee's true and proven narrative exposes in the following pages Appellant's dire and probably criminal conspiracy to attempt to deflect on Appellee Appellant's own misdeeds and responsibility therefor.

Also, Appellee expresses in Appendix 1 his deep concerns about the wording of the U.S. District Court judgement, and in Appendix 2 a plausible explanation for Appellant's actual motives.

Finally, it must be stressed that the case is complicated by the serious conflicts of interest resulting from the facts that (a) Appellee owns about 48% of Appellant DeepGulf, Inc.'s stock, (b) Appellee was, and still is³, one of the only three Directors of Appellant DeepGulf, Inc., (c) Appellee was one of extinct co-Appellant Toke Oil & Gas S.A.'s only two Directors, (d) DeepGulf, Inc.'s Bylaws unequivocally mandate that DeepGulf, Inc. owe Appellee the payment of all his legal fees, (e) Appellant DeepGulf, Inc. owes Appellee about a million dollars for past due salaries and the reimbursement of past expenses plus current legal expenses, and (f) Appellant's legal and attorney fees incurred in his lawsuit against Appellee have been paid or committed from funds which should otherwise have been rightfully earmarked for the pre-existing debt to Appellee.

³ Although Appellant fraudulently attempted to dismiss him from the Board in July 2020, not a week after judgement was rendered.

There is also the serious issue of jurisdiction⁴: Appellant DeepGulf, Inc., a U.S. company, is extant, but foreign Appellant Toke Oil & Gas S.A., an East Timorese company, has been extinct since around 2013 and has no foreign domicile, while Appellee is a foreign citizen who resides in a foreign country⁵.

⁴ Court of Appeals' Jurisdictional Question issued as to Deepgulf, Inc. and Toke Oil and Gas S A. [10/13/2020] and Response by Appellee [10/27/2020]

⁵ Appellee removed Appellants' Florida Circuit Court lawsuit to U.S. District Court on June 25, 2018, based on the diversity of citizenship between Appellee and Appellant DeepGulf, Inc. (28 U.S.C. § 1332 and 1441), and the amount in controversy. Not only was foreign Appellant Toke Oil & Gas S.A. extinct and devoid of a domicile, but also its identity was mischaracterized by Appellants.

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I. Statement regarding an oral argument

In page i of the Brief of Appellant

*Appellants requests oral argument pursuant to 11th Cir. R. 28-1 (c).
The issues presented on appeal involve issues that are better
presented if the parties are allowed to augment their positions
through oral argument before the Court.*

Appellee's statement

Appellee asserts that Appellant's request for an oral argument is only intended to take advantage in bad faith of the impossibility for Appellee to attend said oral argument in person, pursuant to the extant Presidential Proclamation Suspending Entry of Aliens into the United States.

However, although Appellee doubts that Appellant could add verbally anything plausible to his written tall tales, Appellee is prepared to attend an oral argument by videoconference, in order to confront personally Appellant's professed augmented positions.

A similar situation occurred on the occasion of the U.S. District Court trial of the case:

- In March 2020, the President of the United States issued a Presidential Proclamation Suspending Entry of Aliens into the United States;

- Trial in U.S. District Court was scheduled for June 17, 2020;
- On May 26, 2020, seeing that the presidential ban risked not being lifted in time for trial, Appellee filed a Motion to Attend Trial by Videoconference (Doc. 154);
- On May 28, 2020, Appellant filed a Response, requesting that the motion be denied (Doc. 159), to the utter disbelief of Appellee⁶;
- On May 29, 2020, the Court ordered that the motion to attend by videoconference be denied;
- On June 12, 2020, Appellee received from the CDC (Centers for Disease Control and Prevention) a response to his electronic letter of May 29, in which, upon learning about the Court order, he had requested from CDC the terms on which he could possibly travel to the United States despite the

⁶ Appellant contended that "*There is no cause, good or otherwise, for the Motion not being filed on or before May 19, 2020*", whereas there was very good cause indeed, since Appellee could not know that the presidential ban would not be lifted before trial date. The duration of the ban, which was in effect both "*Force Majeure*" and "*Fait du Prince*", was unpredictable. Appellee, who had made plans to appear in person in order to confront Appellant in Court, hoped until three weeks before trial date that the ban would be lifted, and at that point in time filed the Motion. Considering that the ban and the reason for the ban were extraordinary and unpredictable in nature and no equivalent precedent could be invoked, Appellee considers that there was no legitimate cause for opposing or denying his Motion.

presidential ban. The CDC confirmed that no exception to the ban existed for Appellee, and Appellee could not enter the country.

Consequently, Appellee could not attend trial either in person or remotely and could not, in particular, address in Court his own pivotal accusations of document forgery against Appellant, fabricated documents⁷ being the essence of Appellant's pleading during trial. Thus Appellee's counterclaim was not vindicated at trial for the payment of amounts due to him unequivocally by Appellant (see also Appendix 1, paragraph 4), even as he Court declared that "*the company has an obligation on which the statute of limitations has not run*".

⁷ (a) Fabricated "*Executive Order on Salaries*" of September 28, 2012, and (b) falsified "*Minutes of Board Meeting*" of January 15, 2016, which inexplicably alleged that Appellee had somehow accepted to waive his salaries, although Appellant did not provide any plausible explanation as to what undisclosed reason would have caused Appellee to agree to such an onerous sacrifice without any consideration whatsoever:

(a) an alleged and fabricated Executive Order devoid of any legal value whatsoever, since Mr. Howard wrote it himself and failed to authenticate it, said document bearing only his signature and never having been communicated to Appellee until discovery 7 years later, despite Appellee being the company's sole Executive Officer;

(b) falsified alleged Minutes of Meeting devoid of any value whatsoever, since Mr. Howard wrote them himself and failed to authenticate them, said document bearing only his signature, the critical content of which was missing in the copy he had submitted to Appellee after the meeting.

II. Appellee's physical address

In page C – 1 of 1 of the Brief of Appellant

*7. Moszkowski, Marc, Chalet De Bulvedere, Le Crey 73350,
ChampagnyEN, Vanoise, FF*

Appellee's statement

Quite emblematically of Appellant's demonstrated nonchalance and bad faith throughout the case, not only are there no less than 7 spelling errors in the 11 word address, but also the purported address bears no resemblance whatsoever to Appellee's actual address, which is clearly stated not only on this Court of Appeals General Docket for this case, but also on more than 60 instances throughout the U.S. District Court case file⁸.

III. Existence and domicile of Appellant Toke Oil & Gas S.A.

In page vi of the Brief of Appellant

Toke is a company domiciled in Timor Leste

⁸ In some of his filings, Appellant would even state mendaciously: Appellee's "current address or phone number unknown".

Appellee's statement

1. Appellee has repeatedly stated in his pleadings that Toke Oil & Gas S.A., an East Timorese company, ceased to exist around 2013.
2. In all of Appellant's initial pleadings, until Appellee recurrently called the attention of the Court to the fact, Appellant Toke Oil & Gas' very identity was mischaracterized by Appellant.
3. Furthermore, the domicile given in the summons for mischaracterized Plaintiff "Toke Oil & Gas, Inc." was the personal domicile of Appellant's Mr. Howard in Pensacola, Florida, not any domicile in East Timor.
4. As recently as September 28, 2020, the domicile given by Appellant for Toke Oil & Gas S.A. in the Certificate of Interested Persons of his own Brief of Appellant is the personal domicile of Appellant's Mr. Howard in Pensacola, Florida, not any domicile in East Timor.
5. Despite all of Appellee's requests and demands, Appellants were never able to produce any evidence of the continued and uninterrupted existence of Toke Oil & Gas S.A. in East Timor, nor of the composition of its Board of Directors, as certified by the relevant East Timorese governmental authority, and neither did Appellant ever produce the domicile of the company in East Timor, despite Appellant's contention that "*Toke is a company domiciled in Timor Leste*". If the company had been continuously extant in East Timor

and had a domicile therein, Appellant should be unequivocally able, at the very least, to provide a domicile in East Timor, but he is not, and he continues to give as a domicile his own personal address in Pensacola, Florida, whereas Appellant Toke Oil & Gas S.A. not only is foreign, but also has no legal existence.

IV. Incorporation of a foreign corporation

In page ix of the Brief of Appellant

... Appellee formed a company called Toke Oil and Gas, S.A. purportedly to be a wholly owned subsidiary of DeepGulf, Inc. and to utilize DeepGulf, Inc.'s technology in East Timor.

Instead of remitting all the monies earned off of projects in East Timor to DeepGulf, Inc., Appellee diverted funds to Appellee and other owners in Toke Oil and Gas, S.A. In total Appellee was paid \$345,000 by Toke and approximately \$959,000 was paid to the other owners of Toke.

In page xiii of the Brief of Appellant

In East Timor, Marc M. Moszkowski established Toke Oil and Gas, S.A. and made himself an owner rather than DeepGulf, Inc.

In page xiii of the Brief of Appellant

Marc M. Moszkowski led the Board of Directors of DeepGulf, Inc. to believe that he established and was holding Toke Oil and Gas, S.A. in his name for the benefit of DeepGulf, Inc., and that it would have been reckless to hold that interest in DeepGulf, Inc.'s name.

In pages 5 and 6 of the Brief of Appellant

...in East Timor, Appellee established Toke Oil and Gas, S.A. and made himself and two other companies an owner rather than

DeepGulf, Inc. [Doc. 140, 15-16]. Appellee led the Board of DeepGulf, Inc. to believe that he established and was holding Toke Oil and Gas, S.A. in his name for the benefit of DeepGulf, Inc., and that it would have been reckless to hold that interest in DeepGulf, Inc. 's name.

Appellee's statement

Appellant's fictitious story is an unsophisticated, and also absurd, misrepresentation of actual facts, as has been shown by Appellee on dozens of instances in his pleadings. Appellee will report again events as they actually happened:

1. The statement that Appellee, a just arrived transient foreign national in East Timor, "*formed a company*" himself in East Timor in 2008 is utterly absurd. As a matter of course, the company was formed by the two East Timorese⁹ businessmen who had invited Appellee to East Timor. Only they could legally form an East Timorese company, not the foreign visitor, who, moreover, was in the country on a tourist visa only and was uninformed at the time of local business regulations.

⁹ The businessmen have dual citizenship: one is an East Timorese born citizen, who later also became a naturalized Australian citizen as well, while the other is an Australian born citizen, who later also became a naturalized East Timorese citizen as well.

2. It is equally absurd to believe for a second that the two East Timorese businessmen would have invited to East Timor a heretofore miniscule unknown U.S. company which would in turn incorporate a "*wholly owned subsidiary*" that would then own the business that the two East Timorese businessmen had thrived to develop for themselves. It was the natural and obvious assumption of the two businessmen that the future governmental contracts they had envisioned would be owned by their own existing company, Toke Petroleum S.A., and that DeepGulf, Inc. (the Appellant) would be a mere subcontractor.
3. It would indeed have been more than reckless to hold an interest in the East Timorese company in the name of young DeepGulf, Inc., considering that (a) the country was at the time in the midst of grave civil unrest, with assassinations attempts on both the nation's President and its Prime Minister having occurred only a few weeks earlier, the former being almost fatal and having incapacitated the President for several months out of the country, and (b) taking direct financial responsibility for contracts worth millions of dollars would have been highly reckless, with no intermediary other than young DeepGulf, Inc. between clients and contractors, had DeepGulf, Inc.

held the interest directly. Appellee quite generously accepted to expose himself to the risk personally, rather than the company.

4. However, based purely on his skills and experience, the two East Timorese businessmen decided later to make Appellee the President Director General¹⁰ of Toke Oil & Gas S.A., a company to be formed as a sister company of their existing companies, and to make Appellee a 1/3 owner of the new company. Appellee accepted the offer, which was clearly greatly beneficial to Appellant, and kept his interest for the benefit of DeepGulf, Inc.
5. Despite his only 1/3 minority interest in the company, Appellee managed to have as much as 2/3 of the cash flow of the first contract paid to Appellant, while the two owners of the balance 2/3 interest received each only 1/6 of the proceeds, the share of cash flow being paid to Appellant being 4 times as much as that paid to each East Timorese owner, despite an equal ownership of the company. The latter naturally objected to such an imbalanced sharing of proceeds, and it was agreed that cash flow resulting from purely local logistical support activities in East Timor be reserved to them.

¹⁰ In a number of common law jurisdictions, the position of "*President Director General*" is equivalent to that in the U.S. of "*Chairman of the Board and Chief Executive Officer*".

6. Should Appellee have floated the ludicrous notion of "*remitting all the monies earned off of projects in East Timor to DeepGulf, Inc.*", the two East Timorese partners would have laughed him out of East Timor on the first flight, and in a straightjacket too, as insanely unfit to be associated with their project. The business had been developed by the two East Timorese partners, evidently for their own benefit, not for the exclusive benefit of a distant foreign company devoid of any asset or money to spare, which they had kindly invited to East Timor to assist them, not to substitute for them and rob them of their business.

7. However, overall, after three projects, Appellee caused Toke Oil & Gas S.A. to pay Appellant DeepGulf, Inc. a total of 50.3% of **all** cash flow (furthermore, **excluding** any salary paid to **any** of Toke Oil & Gas S.A.'s Directors), which is significantly greater than the 33.33% to which Appellee's 1/3 share was actually entitled¹¹ and is more than **double** the monies paid to each other 1/3 share of the company.

8. The salaries paid to the three Directors by Toke Oil & Gas S.A., including the salary that Appellee received as President Director General, came

¹¹ And theoretically a 33.33% share of the company would have been entitled to 33.33% of net profit only, which itself is significantly smaller than cash flow.

entirely out of the 49.7% of cash flow that was received by the East Timorese owners of 2/3 of the company, **not** out of the 50.3% share paid to Appellant.

9. Of course, not one cent was "*diverted*".

10. No pre-existing "*DeepGulf, Inc.'s technology*" was used in any of the three East Timorese projects.

11. Appellee strongly denies that Appellant could have been so oblivious as to think for so many years that Toke Oil & Gas S.A. was "*purportedly to be a wholly owned subsidiary*", moreover since Appellant undertook later to acquire Toke Oil & Gas S.A. in three distinct transactions: who ever tried to buy an asset one thought one already owned?

12. For the record, it so happens that Appellant unequivocally owes Appellee, for unpaid salaries and the reimbursement of past and legal expenses, an amount that is about three times as much as the amount Appellant hereby accuses Appellee of having "*diverted*" to himself.

To this day, the actual rationale for Appellant to sue Appellee has been quite suspicious¹²: (a) Appellant was paid by Toke Oil & Gas S.A. 151% as much as what was due Appellee's share; (b) Appellant accused Appellee of having stolen from Appellant an amount that is but one-third of what Appellant unquestionably owes Appellee; (c) Appellant claimed from Appellee intellectual property and U.S. patents which Appellee had already formally assigned to Appellant 13 years prior to this lawsuit¹³; (d) the Statute of Limitations is clearly expired, since there is no ground whatsoever for Appellant to still pretend in good faith he did not know of the facts long before he brought the lawsuit; (e) the goodwill of DeepGulf, Inc. was all but destroyed in the dispute; (f) countless days, weeks and months were devoted to legal defense, which could have been used constructively for developing business; and (g) considerable amounts of money were spent on legal fees.

V. Purported incorporation of a subsidiary

In page xii of the Brief of Appellant

He informed the Board it would not be possible to do business in East Timor as a US corporation.

¹² See also Appendix 2 for a plausible explanation.

¹³ See also Appendix 1

Based upon these representations, the Board discussed solutions including the creation of a DeepGulf, Inc. subsidiary company in East Timor, then passed a resolution to create said subsidiary.

Appellee's statement

Appellant's assertions lead Appellee to state that the alleged resolution¹⁴ was passed unilaterally by Appellant's Mr. Howard long after the fact, since (a) said resolution was never communicated in any form to Appellee until discovery, a decade later, and (b) quite absurdly, the name chosen for the alleged subsidiary in the resolution was "*Toke Petroleum*", a company which not only already existed at the time but was the very company from which the first request had been received from East Timor in September 2007. Appellee would certainly not have agreed to DeepGulf, Inc. "*creating*" a subsidiary company that not only already existed but also belonged to others. The absurd resolution, like so many others, was poorly fabricated after the fact by Appellant's Mr. Howard.

¹⁴ Allegedly in Minutes of DeepGulf, Inc. Board of Directors Meeting, February 4, 2008.

VI. Original technology

In page xi of the Brief of Appellant

... the formation of a company to utilize technology known as Ultradeepwater J-Flex Pipelay system. The company that was eventually formed was called DeepGulf, Inc.

Appellee's statement

The company was indeed formed to utilize the "*J-Flex Pipelay*" ultradeep water technology, which Appellee had developed and patented in the years **before** the company was incorporated. Appellant's Mr. Howard had strictly no part in developing said technology, although Appellant's paragraph in page xi of his brief is unclear with regard to intellectual authorship, perhaps even misleadingly.

Appellee assigned the patent rights to Appellant after the incorporation of the company.

However, sadly, but also ironically in a way, although Appellant has sued Appellee for the ownership of other intellectual property developed by Appellee, Appellee found over the course of this lawsuit that Appellant's Mr. Howard neglected to pay to the United States Patent and Trademark Office (USPTO) the small maintenance fee due in relation to the *J-Flex* patent, and, consequently, the patent **lapsed** in 2016, thus depriving the company of its most valuable intellectual asset, owing to Mr. Howard's own gross negligence. Appellant is frivolously suing for patents

which he clearly demonstrated he is likely to negligently and irresponsibly cause to lapse.

VII. Negotiation of contracts

In page xv of the Brief of Appellant

During the time that Marc M. Moszkowski was working in East Timor, Rustin Howard believed that Marc M. Moszkowski was negotiating contracts on behalf of DeepGulf, Inc. Rustin Howard believed that DeepGulf was involved in operations regarding the projects in East Timor, as DeepGulf employed and paid Marc M. Moszkowski to be its Project Manager. Also, during that time, Marc M. Moszkowski requested reimbursement from DeepGulf, Inc. for his travel expenses.

Appellee's statement

One more of several repeated instances of Appellant's Mr. Howard's irrational and implausible alleged beliefs, in view of the 18,271 messages plus attachments exchanged between him and Appellee over the course of a decade, and plain factual accounting.

Contracts with third party clients were all established by Toke Oil & Gas S.A. Not a single contract was ever signed by DeepGulf, Inc., except the contract for remittances from Toke Oil & Gas S.A., according to which DeepGulf, Inc. received regular payments from Toke Oil & Gas S.A., never from any of Toke Oil

& Gas S.A.'s clients. Appellant's Mr. Howard, being the self-appointed financial officer and the only person he unilaterally authorized to be in contact with Appellant's banks, cannot pretend that he thought otherwise.

DeepGulf, Inc. employed and paid Appellee as its President and CEO in the U.S., as per visa requirements, not as a Project Manager in distant East Timor.

It is frankly unreasonable to believe that Appellee, whose work was the only source of Appellant's revenue, should not have requested reimbursement of travel expenses. Incidentally, Appellant still owes Appellee the reimbursement of full travel expenses incurred on the occasion of the initial trip to East Timor in 2007.

As an additional perk to DeepGulf, Inc., Appellee convinced Toke Oil & Gas S.A.'s two East Timorese Directors to pay for all his domestic expenses within East Timor, out of their already reduced share of cash flow. Said domestic expenses largely exceeded overseas travel expenses.

VIII. Alleged intent to leave the company

In page xi of the Brief of Appellant

Marc M. Moszkowski repeatedly expressed his intent to leave the company and establish a new company that would then compete with DeepGulf, Inc. to complete its projects using DeepGulf, Inc. technology

Marc M. Moszkowski repeatedly expressed his intent to leave the company, and work for a competitor company to bring the projects to fruition not for the benefit of DeepGulf, Inc.

In page xii of the Brief of Appellant

but would reward some DeepGulf, Inc. shareholders and exclude other DeepGulf, Inc. shareholders.

In page 5 of the Brief of Appellant

... it was always the Appellee's intent to find a way to leave DeepGulf, Inc. to form a new company to compete. with DeepGulf using its technology or work for a competitor to bring projects to fruition not for the benefit of DeepGulf, Inc.

Appellee's statement

Here again, Appellant paints an absurd and shockingly mendacious picture, moreover totally out of context. Here are the real verified facts:

1. In February 2017 Appellee was **compelled** to leave the United States, not because such was his desire, as Appellant later ridiculously, nefariously and mendaciously asserted on September 11, 2018¹⁵, but because he lacked the visa or visa renewal that would have allowed him as an alien to remain legally in the United States. Said visa was of the sole responsibility of

¹⁵ Appellant wrote that "*Counter-Plaintiff has absconded*", referring to Appellee (Doc. 14, paragraph 4). If so, Appellee would have reportedly "*absconded*", quite absurdly, more than a year before he was frivolously sued by Appellant.

Appellant to obtain, but Appellant never delivered on his repeated promises to provide either visa or visa renewal.

On February 15, 2017, Appellee was **heartbreakingly compelled** to leave the United States, a land he treasured and had called home for nearly 20 years. He left on the free fare he obtained from an airline, with less than \$50 in his wallet, and just one piece of luggage. He was compelled to leave behind and give away the personal possessions he had gathered over his nearly 20 years presence in the United States, including hundreds of books and music records, a houseful of fine furniture, all his articles of clothing, cameras, electronics, tools, kitchenware, appliances, bicycle, car, and above all his prized artwork. He also had to leave behind all his friends of 20 years and return as an impoverished exile to his country of origin, where he had virtually no friend or relative left. All of the above happened because of Appellant's empty promises, deeds, inaction, and misrepresentations.

2. Because of the inaction of Appellant in obtaining a visa, and the very contentious nature of the relationship with Mr. Howard, who continued to refuse to petition for a visa and raise funds so that a salary could be paid to

Appellee for his work¹⁶, there was no alternative offered Appellee if he were to merely survive after his eviction from the country, but to try to work abroad in his line of work.

In very heated exchanges at the end of 2016, which were all witnessed by then Director William B. Lott, Jr., Appellee told Appellant's Mr. Howard that since it was precisely Mr. Howard who repeatedly refused to allow Appellee to continue to work legally for the company, Appellee's only alternative was to work either for another company, or for a competitor.

3. In essence, while Mr. Howard was preventing Appellee from legally working for Appellant DeepGulf, Inc. and was in effect having him banished from the United States, at the same time he also prohibited Appellee from using any of the intellectual property Appellee had developed himself over the course of two decades without any support from Appellant, notwithstanding that Appellee was still owed by Appellant close to a million dollar in due salaries and expenses and **all** of Appellant's intellectual

¹⁶ Also, unbeknownst to Appellee, in 2005 Mr. Howard committed to the Department of Homeland Security to guarantee personally Appellee's salaries on his own assets (Doc. 138-1, page 71 of 77). Not only was the guarantee never honored by Mr. Howard, but also Mr. Howard attempted in 2013 to substitute for the salary a high interest personal loan to Appellee for which a friend of Mr. Howard and company stockholder is currently suing Appellee in France, although illegitimately.

property had been devised by Appellee. Appellee sees Mr. Howard's outlandish demands as the malicious manifestation of gratuitous cruelty, since (a) by having him expelled from the country and failing to pay him a salary, Appellant barred Appellee from utilizing for the benefit of Appellant the technologies Appellee himself had developed, while he is still being owed a considerable amount of money by Appellant, (b) Mr. Howard prohibited Appellee from using for himself the technologies Appellee had developed, and (c) Appellant was and is incapable of using any of the technologies developed by Appellee without Appellee's support. Appellee fails to discern what Mr. Howard's line of thought could have been, except to inflict cruel and unwarranted harm on Appellee.

4. However, in the four years since his forced exile, not only did Appellee never resign from any of his positions within Appellant DeepGulf, Inc. and never received a cent from either another company or a competitor, he also vigorously rejected all of Appellant's attempts to dismiss and discharge him from the company¹⁷, his reasons being (a) a question of principle, and (b) loyalty towards the *bona fide* investors in the company's stock (a category

¹⁷ And Appellee continues to only use his @deepgulf.net email address for all correspondence.

from which Appellee naturally excludes the two Directors who usurped power and connived to frivolously sue Appellee in a Court of Law).

5. Furthermore, from a theoretical legal standpoint, while Appellee understands the illegality of committing an unlawful act with a deliberate but hidden intent, followed by an overt act toward furthering the intent, he does not understand in which way a mere openly expressed logical and candid opinion which was not accompanied by any act, whether lawful or unlawful, could in any way be reprehensible.

IX. Travel

In page xiv of the Brief of Appellant

While Marc M. Moszkowski was in East Timor, Rustin Howard attempted to travel to East Timor; however, Marc M. Moszkowski told Rustin Howard that it was too dangerous for Rustin Howard to go to East Timor. No DeepGulf, Inc. employee or Director, other than Marc M. Moszkowski ever traveled to East Timor.

Appellee's statement

Beside the irrelevance of the statement, Appellant had only two officers, Appellee and Mr. Howard, and the latter's responsibility was only financial, not operational.

Mr. Howard expressed a desire to travel to East Timor only once, in 2012, and at a time when a severe dispute between an East Timorese Director and four East

Timorese officials at the highest level of government¹⁸ had just sparked, which brutally jeopardized the future projects Appellee was preparing in East Timor and rendered the security and safety of DeepGulf, Inc.'s people in East Timor more than precarious. Not only would Mr. Howard's trip have been futile, useless, and counter-productive, it would also have been reckless of Appellee to condone it.

Mr. Howard had no ability whatsoever to resolve the matter, which he never understood, nor tried to understand. Furthermore, if anything nefarious had happened to Appellee while in East Timor, there would have been no one at home to try to salvage him.

Of particular interest, the feud with the four Timorese officials lasted several years and at one time involved a U.S. national law firm¹⁹. The feud was due primarily, although of course unofficially, to Appellee's firm policy of refusing to pay bribes²⁰. For the record, the four East Timorese officials mentioned above were all

¹⁸ The Chairman and CEO of the National Oil Corporation; the Secretary of State for Electricity; the President of the National Petroleum and Natural Resources Authority; and the Minister for Petroleum.

¹⁹ The Law Firm of Arent Fox LLP in Los Angeles, which had been commissioned in 2013 by one of the East Timorese officials. The law firm's intervention on behalf of the East Timorese officials was unsuccessful.

²⁰ A policy with which Mr. Howard did not unquestionably concur.

later **discharged** rather dishonorably from their governmental and ministerial positions and Appellee's personal reputation in the country is being restored with their successors.

X. Alleged ignorance of Appellee's position

In page 6 of the Brief of Appellant

*... in actuality, DeepGulf was paid for no particular reason.
Appellee's testimony shows that Appellee was, unknown to DeepGulf
at the time, acting as project manager directly for Toke Oil & Gas,
S.A*

Appellee's statement

Appellee was the President Director General of Toke Oil & Gas S.A. since 2008, and in that position negotiated and signed all contracts with the Government of East Timor and a Consortium of nine large South Korean corporations²¹. Appellee was also the Project Director on behalf of Toke Oil & Gas S.A. in all the contracts. Appellant's claim that he was not aware of the fundamental managerial positions is clearly either mendacious or irresponsible, given the plethoric 18,271 messages plus attachments exchanged between Appellee and Appellant over a decade, and

²¹ Among which were Samsung, STX, KOGAS, LG International, and GS CALTEX.

all the voluminous contracts and documents that Mr. Howard downloaded from Appellee's FTP server when too large to be attached to an email, in which messages, attachments, contracts, and documents obvious and clear references to the positions systematically and recurrently appeared.

XI. Alleged fraudulent concealment

In page x of the Brief of Appellant

Appellee fraudulently concealed the acts

In page xiv of the Brief of Appellant

DeepGulf, Inc. had no knowledge of these payments until late 2017

In pages 3 and 4 of the Brief of Appellant

5. Plaintiffs assert the defense of fraudulent concealment as to Defendant's Third Affirmative Defense. Defendant fraudulently withheld any facts with which Plaintiff DeepGulf, Inc. could have reasonably discovered that (sic) Plaintiff was being paid by Toke Oil and Gas, S.A.

In page 5 of the Brief of Appellant

In the instant case, the Appellee fraudulently concealed the fact that he made money from Toke Oil and Gas, S.A. during the 2009-2012 time period.

In page 8 of the Brief of Appellant

Appellants did not know until the discovery phase of the litigation in the District Court how payments made to Toke's directors and owners were broken down. The evidence presented by the affidavit of DeepGulf's Chairman of the Board is sufficient to, at a minimum,

creates an issue of material fact as to the issue of fraudulent concealment, which is grounds for this Court to reverse the Order granting Appellee's Motion for Summary Judgment as to Counts III through VI of Appellants' Complaint.

Appellee's statement

The assertion by Appellant that he "*did not know until the discovery phase of the litigation in the District Court how payments made to Toke's directors and owners were broken down*" and that those payments were fraudulently concealed are clearly deceitful, as has been abundantly demonstrated by Appellee throughout his pleadings in U.S. District Court, and in particular with respect to:

1. Toke Oil & Gas S.A.'s financial statements

Toke Oil & Gas S.A.'s detailed financial statements were supplied by Appellee to Appellant's Mr. Howard as early as January 26, 2011, for the years 2008 to 2010, and May 25, 2012 for the year 2011, more than 7 years 2 months and more than 5 years 10 months before Appellant's complaint.

The statements included clear references to the salaries paid to Toke Oil & Gas S.A.'s Directors, the last of which occurred more than 6 years 4 months before Appellant's complaint²². Furthermore, said financial documents were

²² In his lawsuit Appellant oddly accused Appellee of having stolen all of the Toke Oil & Gas S.A.'s Directors' salaries from Appellant, and demanded from Appellee personally

used and **incorporated** by Appellant's Mr. Howard himself **in Appellant's own financial statements.**

2. Appellee's personal bank statements

As per Doc. 138, paragraph 12, page 4, Appellant's Mr. Howard was specifically informed about all salaries paid by Toke Oil & Gas S.A. to Appellee, including but not limited to an email by Defendant dated March 6, 2014 recapitulating all monies personally received by Appellee from Toke Oil & Gas S.A., with detailed and clear original bank statements attached. Appellant confirmed receipt of said email at the time. Additionally, the email was contained within Appellant's own discovery production in July 2019, so his claim of ignorance must be rejected.

3. Appellee's 10 letters to the shareholders, including Appellant's Directors

As many as 10 letters were sent by Appellee to the shareholders between November 19, 2017 and February 5, 2018, several months before Appellant filed his lawsuit. The extensively documented letters contained 79 pages in total, typed in a single-spaced 11-point Arial font, and provided considerably

the payment to Appellant of 3 times the total amount paid for all salaries to all Directors, or nearly \$4 million.

more information than that Appellant's Mr. Howard claims he was not aware of until the discovery phase.

4. Appellant's own complaint

Furthermore, if there were any doubt left about the irrationality of Appellant's allegations, Appellant's own complaint refers specifically and separately to the exact salaries paid to Appellee and to the two East Timorese owners, not only accurately and to the cent²³, but also as a *verbatim* reproduction of the exact figures which Appellant had not only received from no other than Appellee but also had acknowledged²⁴, so Appellant's claim that he "*did not know until the discovery phase of the litigation in the District Court how payments made to Toke's directors and owners were broken down*" makes no sense whatsoever.

Appellant's Mr. Howard therefore severely misrepresents the truth when he claims that he "*did not know*", and that there was any "*fraudulent concealment*", since no information was ever concealed, let alone fraudulently.

²³ \$1,304,764.22, \$345,000, and \$959,764.22

²⁴ In Board of Directors Meeting, December 26, 2017

XII. Employment by foreign corporation

In page xv of the Brief of Appellant

That email that Rustin Howard received three weeks later from Marc M. Moszkowski described above led Rustin Howard to believe that Toke Oil and Gas, S.A. had paid DeepGulf, Inc. so that DeepGulf, Inc. could pay Marc M. Moszkowski for his services as Project Manager in East Timor.

Appellee's statement

Ivy League Master of Business Administration Mr. Howard alleges again that he was so unprofessional as to be "*led ... to believe that Toke Oil & Gas S.A. had paid DeepGulf, Inc. so that DeepGulf, Inc. could pay Marc M. Moszkowski for his services as Project Manager in East Timor*".

One question immediately arises: why would an East Timorese company pay U.S. corporation DeepGulf, Inc. so that DeepGulf, Inc. could pay a salary to its President and CEO (the Appellee), when the terms of the U.S. visa allowing Appellant to employ Appellee were unequivocal in the sense that Appellee was due a salary by Appellant irrespective of any business and Appellant's Mr. Howard had guaranteed to the U.S. Government said salary on his own personal assets since as early as July 20, 2005²⁵?

²⁵ Doc. 138-1, page 71 of 77

In fact, and much more simply, Toke Oil & Gas S.A. paid DeepGulf, Inc. in relation to the 1/3 interest Appellee was holding in Toke Oil & Gas S.A. for the benefit of Appellant. However, Appellee caused Appellant to receive in the end not only 33.33% of all cash flow but 151% as much, since Appellant was paid 50.3% of said cash flow, with all salaries coming on top of that.

On the other hand, invoicing had to be established since DeepGulf, Inc. was not an owner of Toke Oil & Gas S.A., so it was agreed that invoices would be established by convention for "*Project Management Services*", although no name was specified and Appellee was not a project manager for Appellant DeepGulf, Inc., of which he was the President and CEO, while he was also the President Director General and Project Director for Toke Oil & Gas S.A.

If some third party individual had been appointed as President Director General, that individual would have received a corresponding salary, and said individual would have had no reason to agree to Appellant receiving one cent more than the 33.33% of **net profit** (which in turn is significantly lower than cash flow) which was due to Appellee's holding. Even assuming absurdly that the East Timorese owners had somehow volunteered to pay out of their own share of cash flow Appellee's salary to Appellant instead, which they would have had strictly no reason to, the remittance would have been used by Appellant to pay Appellee for

customary extended expatriation and marine offshore overheads, after the payment of additional taxes, plus the reimbursement to Toke Oil & Gas S.A. of all local expenses incurred for Appellee in East Timor. In essence, Appellant sues Appellee for (a) the payment of an amount that would have been used by Appellant (who incidentally still owes Appellee a million dollar or so) to rightfully pay for additional customary expenses from which he was otherwise relieved, and (b) the payment of taxes that would otherwise not have been due, the rationale of the whole charade being quite unclear.

XIII. Company property

In page xviii of the Brief of Appellant

Appellant's right to possession of "Company Property".

Appellee's statement

The only property which could have been deemed the Appellant's was the laptop computer acquired in July 2009 for Appellee. Said laptop computer was replaced by Appellee after 8 years of intensive use with a more recent and powerful model, although **not** at Appellant's expense. The 2009 computer's motherboard had already failed in April 2015 and had to be cheaply replaced, which Appellant's Mr.

Howard cannot ignore, since he participated in the operation and **declined to purchase a new computer**. The 2009 laptop computer finally failed definitely in January 2017 and Appellee acquired a new one, although again not with company funds, and therefore the new computer belongs unequivocally to Appellee personally. The new laptop computer contains decades of Appellee's personal files. **All professional information** related to Appellant DeepGulf, Inc., had been transmitted to Appellant by mid-2019, in more than **35,000 messages and attachments**²⁶.

XIV. Website

In page 1 of the Brief of Appellant

Defendant's refusal to turn over the usernames and passwords for DeepGulf's website

Appellee's statement

The wording in Appellant's brief reveals a deep ignorance of the technology behind a website.

²⁶ Reviewing all 35,000 messages and attachments would require an entire intensive work-year, assuming an average of only 3 minutes per file, many of which are quite complex and would require a considerably longer time to review.

"Usernames and passwords" cannot be legally *"turned over"*, for the following reasons, among others:

1. *"Website"* in this instance has not much significance. A website consists of a *"domain name"*, of *"HTML"* pages, and of a *"host"*. The domain name appears in the *"http or https"* website address and the host is the physical server on which the domain and the HTML pages reside.
2. In the case raised by Appellant, the domain name remains Appellee's property, particularly since Appellant has been unwilling since 2016 to pay for the recurring expenses related to both domain and hosting. Those expenses have been paid integrally and for several years by Appellee out of his personal funds and the domain would have long expired and been grabbed by others if he had not.
3. The domain is hosted on a server of which all usage belongs to Appellee, who, for years, has been paying for it personally. More than a dozen other domains which unequivocally belong to Appellee share the same hosting server.
4. Merely *"turning over"* *"usernames and passwords"* would result in Appellant getting access to all the other private domains and to the hosting

server, which belong unequivocally to Appellee. On shared hosting there is no specific username and password for each hosted domain, and anyway Appellee owns the hosting server.

5. Both domain name and host are in Appellee's name, and have been so since inception. Appellant never was the legal owner of any of the domains.
6. The "*website*" is of no practical commercial value, given the nature of company's business, and is particularly of strictly no value to Appellant's Directors. To wit, the "*website*" was password-protected by Appellee from Christmas 2017 until Christmas 2018 and for a whole year neither Appellant's Directors ever noticed they could not access it. The password-protection was then removed until July 2020, when the web pages were definitely withdrawn. Neither Director, nor anyone else for that matter, ever inquired about or protested the password-protection or the pages being taken offline, which exemplifies the absolute uselessness for them of said website.
7. However, the un-copyrighted domain name and the host are used extensively by Appellee for email and file storage purposes, including all emails related to this and other lawsuits, and all his personal emails. Turning over the domain name to Appellant would be tantamount to revealing to Appellant all of Appellee's confidential and private information, including that relevant to

the disputes with Appellant, and so is impossible. A migration by Appellee to another email domain would utterly jeopardize Appellee's privacy, since it would typically take years, if not more than a decade, before all of Appellee's correspondents would stop using shortcuts to the old email addresses, to which Appellant would have full access while access would be forbidden to Appellee, should the ownership of the domain be transferred. Furthermore, Appellant would be able to fraudulently impersonate Appellee at will, which is of course an unacceptable risk for Appellee.

8. Appellant's identity is "*DeepGulf*". It would be fairly reasonable and easy for Appellant to select and purchase a suffix for a new *DeepGulf.xxx* domain name among a very large choice. Appellant could host his new domain on a server of his choice, and of course at his own expense, with a suffix such as com, org, us, cc, co, eu, biz, pro, tech, ... etc. There are hundreds of such available suffixes.

XV. Dispute between Appellee and Appellant's Mr. Howard

In page 7 of the Brief of Appellant

Appellee's fraudulent concealment of information from DeepGulf, Inc. does not end there. On November 29, 2017, Appellee sent his

friend, William Lott, Jr., an email which was submitted to the District Court in Appellants' Response to Motion for Summary Judgment [Doc. 144-2].¹ The email discusses payments that were made from Toke Oil and Gas, S.A. to various individuals and entities. Appellee is still concealing information from DeepGulf, Inc.'s Chairman of the Board, Rustin Howard. Appellee says "I just refuse to give Rus what he wants" and described the email as **"FOR YOUR EYES ONLY, PLEASE DO NOT FORWARD. THIS IS HOW SALARIES WERE PAID. I WANT RUS TO SWEAT FOR THIS INCONSEQUENTIAL BREAK-UP"** (emphasis supplied). Importantly, this email shows his refusal to provide information to Mr. Howard, just weeks before receiving the initial Civil Theft warning letters [Doc. 1, Exhibits B and C]. The Appellee did not want the Chairman of the Board of DeepGulf to be made aware of how monies were paid from the projects in East Timor.

He wanted to keep it that way by fraudulently concealing that information from him.

¹ This email was received in the course of discovery during litigation and only after various Motions to Compel.

Appellee's statement

The word "break-up" was mistyped in the email. It should have read "break-down".

Revealingly, Appellant refers to William B. Lott, Jr. only as a friend of Appellee's.

However, Mr. Lott, who did participate during the course of the personal dispute between Mr. Howard and Appellee in all the numerous contentious in-person and telephonic meetings²⁷, did so not as a friend, but as one of the company's three

²⁷ Which were in fact Board of Directors meetings

Directors, the other two being Mr. Howard and Appellee. It is characteristic of Appellant to conceal such a critically important fact.

The personal dispute was between Mr. Howard and Appellee, not between the Board of Directors and Appellee. If anything, the dispute was between Mr. Howard and the Board of Directors, as will be shown in the next paragraph. The dispute stemmed from the announcement made by Appellee to Mr. Howard at the end of August 2016 that Appellee wanted parasitic Mr. Howard to step down from the Board of Directors and sell 2/3 of his stock for \$1 to those individuals who actively supported Appellant DeepGulf, Inc.'s activities financially while Mr. Howard had all but abandoned Appellee and the company to their own devices, without providing any support whatsoever, and had thoroughly demonstrated his professional incompetence, unconcern, indolence, intellectual dishonesty, and lack of skills. On that day, Appellant's Mr. Howard declared vociferously to Appellee that he would fiercely retaliate for the affront, which he did when he filed this frivolous lawsuit.

Mr. Lott was at first neutral, while he endeavored to impartially sort out information from both parties, but the information he gathered led him to side with Appellee, based on facts, evidence, and logic. Consequently, the Board then consisted of **two Directors, Mr. Lott and Appellee, being of one majority**

opinion, while the lone minority third, Mr. Howard, was dissenting. The minority Mr. Howard had no authority whatsoever to impose his views on the majority.

Appellee did communicate all the information he had to the Board, through Mr. Lott, but after a while he categorically refused to further cooperate directly with Mr. Howard, the minority dissenting Director, since the latter continuously insulted him by accusing him of various imaginary crimes without a shred of evidence, and refused to provide any of the financial and corporate information Appellee was demanding from him.

Mr. Howard became gravely irritated with Mr. Lott siding with Appellee, to the point that he threatened Mr. Lott of lawsuits, both personal and corporate, which exasperated Mr. Lott and led him to not seek reelection to the Board of Directors at the end of 2017. After having so manipulated Mr. Lott into not seeking reelection, Mr. Howard then grabbed the opportunity to manipulate shareholders into appointing a close friend and associate of his, Thomas J. Johnson, to the vacant Board seat, thus reversing the majority in his favor, after which the two connived

to bring suit against Appellee without informing Appellee of the intervening secret collection of proxies from the shareholders²⁸.

Appellee at first did not refuse to communicate with the Board while Mr. Lott was a Director. However, it became increasingly difficult for Appellee, and sometime impossible, to submit to the unilateral diktats of minority Director Howard, who seemed to believe he possessed some imperial, perhaps even divine, prerogative over the company and the Directors, which he clearly did not, moreover since he was in the minority.

During all that time, Mr. Howard refused to provide to Appellee the company's financial documents and the addresses of half the shareholders that Appellee was demanding.

With regard to Appellant's misleading note that "*This email was received in the course of discovery during litigation and only after various Motions to Compel*", Appellee must stress that (a) said email was one of **35,000** emails and messages, **plus** attachments, sent by Appellee to Appellant over the course of discovery,

²⁸ Appellee later found from the analysis of documents, which were obtained from Appellant's Mr. Howard in 2019 only under threat of subpoena, that said proxies had been secretly and fraudulently obtained, by primarily falsifying the tallying of stock either in documents given Appellee or in corporate financial statements or both.

while Appellant had to be subpoenaed before Appellee could finally be furnished a tiny fraction of the documents that Appellee had demanded, and (b) five Motions to Compel were filed, three by Appellant (Doc. 31, 94, and 104), and two by Appellee (Doc. 39 and 98). All were **denied** by the Court (Doc. 42, 45, 103, 107, and 111).

Not only is Appellant clearly attempting to mislead this Court by suggesting that any document was ever produced by Appellee as a consequence to a Motion to Compel, but also Appellee sees in Appellant's allegations a clear instance of the colloquial pot calling the kettle black. See also section XVII below.

XVI. Futility of Appellant's amendment

In page 10 of the Brief of Appellant

A substantial reason articulated by the District Court for denying the Motion was that such an amendment would be futile

Appellee's statement

Appellee believes that not only would the amendment be futile indeed, but also:

1. Contrary to Count X of the proposed amendment, Toke Oil & Gas S.A. was in no way "a business or entity that is **in competition** [emphasis added by

Appellee] *with the products or services being conceived designed, created, developed, manufactured, marketed, distributed, or sold by the Company*".

Far from being a competitor, Toke Oil & Gas S.A. was Appellant's client all along, a fact that Appellant can definitely not ignore, since he received his payments from Toke Oil & Gas S.A. All of Appellant's cash flow came from said client²⁹. Toke Oil & Gas S.A. did not substitute as a competitor for DeepGulf, Inc., and on the contrary, as has been shown in section IV, it was DeepGulf, Inc. which, according to Appellant's own allegations, attempted to substitute absurdly for Toke Oil & Gas S.A. and rob the East Timorese owners of their business.

2. Appellant alleges in Count X that *"by working for Toke Oil & Gas, S.A. and accepting these payments, Defendant breached the contract"*. Not only is the allegation untruthful, as has been seen in paragraph 1, but also Appellant had never expressed any remark whatsoever about said employment since 2008, when Appellee was openly appointed President Director General of Toke Oil & Gas S.A., or since 2011, when Appellant received from Appellee all financial statements for Toke Oil & Gas S.A., which displayed in clear letters the salaries paid to the Directors, or since 2014, when he received

²⁹ And also in other markets directly from Appellee's personal consultancy clients

detailed personal bank statements from Appellee, which unequivocally showed all salary payments.

XVII. Tortured history of this case, as seen by Appellee

In page 10 of the Brief of Appellant

In the long, tortured history of this case, Appellee frustrated Appellants' attempts to obtain full discovery

Appellee's statement

As was remarked in section XV, Appellant's characterization of the case is an appalling illustration of the colloquial pot calling the kettle black.

Appellee provided directly to Appellant, or later through his own Attorney when and while he could afford one, all the documents requested by Appellants that he had in his possession. In excess of **35,000 documents plus attachments were provided by Appellee** to Appellant.

On the other hand, on November 28, 2018, Appellee made 64 discovery requests for the Appellant to produce documents. Of those, **only one** single relevant

document was produced by Appellant³⁰. Although nine more documents were produced, all nine were grossly irrelevant and not at all what Appellee had requested. All other 54 document requests were flatly denied by Appellant on January 11, 2019.

Appellant was so unwilling to provide documents that on June 29, 2019 Appellee had to subpoena the bank records and financial documents that Appellant until then had refused to produce (see Doc. 89, Exhibit A, page 7).

Only the last 7 years of bank records were produced by the bank, dating from after 2012, since the bank does not conserve any older document. Although Appellee did understand the bank's policy, he did not believe Appellant, who pretended not to have kept financial documents dating from 2004 until 2012. Appellee does not believe that any company administrator would in good faith get rid systematically and continuously of all financial documents older than 7 years, especially in a company as small as Appellant. Consequently, Appellee considers that Appellant still owes him all financial documents and bank records dating from 2004 until

³⁰ The minutes of meeting of the Board of Directors of December 26, 2017, which resulted in the lawsuit, said minutes having inexplicably never been communicated until discovery to the Appellee, who however was a Director, although absent from said meeting.

2012. During the course of discovery, Appellee was not a mere third party, from whom documents older than 7 years could possibly be restricted, but Appellant's largest shareholder, with close to half the stock, the President, and one of the three Directors, and he was therefore clearly entitled as per Florida Statutes to said documents and records, and still is.

To this day, Appellee has still not received from Appellant in excess of 95% of the documents he requested during discovery.

APPENDIX 1: Issues regarding the Final Judgement

1. Although Appellant was adamant in Count I of his lawsuit that Appellee turn over to Appellant all the patents Appellee had authored, Appellee trusts that the **claim was in fact moot**, since Appellee had, in 2005, already assigned to Appellant his patent interests³¹. The Court awarded Count I to Appellant for a thing that Appellee had already definitively provided to Appellant 15 years earlier, as was recounted literally in the body of Appellant's Count I itself. However, Appellant's Mr. Howard neglected for years to exercise the patent assignment, sheer negligence for which Appellee can hardly be blamed.

³¹ See Count I, paragraph 15, in which the assignment is mentioned *verbatim*.

Incidentally, as has been mentioned in section VI above, the most important patent, "*J-Flex*", on which Appellant DeepGulf, Inc. was founded in 2004 and of which Appellant had exercised in 2007 the interest assignment granted by Appellee in 2005, lapsed unforgivably in 2016 because Appellant's Mr. Howard irresponsibly neglected to pay the small maintenance fee to the United States Patent and Trademark Office (USPTO).

2. In addition to the Count being in effect moot, U.S. District Court followed Appellant's proposed wording regarding judgement for Count I and declared in the Final Judgement that Appellant "*owns*" the patents, which Appellee stresses is in fact technically untrue and misleading, since there exists another third party co-inventor on each and every one of the patents, who did not assign his interest to Appellant (and there's no reason to believe he would or will). Appellant could not "*own*" the patents, but only the partial assignment of Appellee's co-interest, which Appellee had already assigned to Appellant on September 15, 2005. Appellee does not know how the imbroglio will unfold but chances are the co-inventor will be dissatisfied with the order, which spoils him of his interest, and he will seek legal redress from Appellant.

3. Furthermore, although the basis for the final judgement was that only intellectual property conceived by Appellee after September 15, 2005 through the date of judgement be owned by Appellant, the judgement specifically but erroneously incorporated intellectual property which dated from nearly a year before September 15, 2005³².
4. On another level, during bench trial the Judge said³³, as Appellee understands it, that although Appellant's debt obligation to Appellee was still enforceable, the parties needed to "*figure out a way to go [their] separate ways*". Appellee would argue that (a) the evidence produced by Appellant during trial was obviously and absurdly forged (see note 7 in page 10 *supra*), (b) funds are due to the organization by Mr. Howard, who was, and still is, in charge of funding the company, although he unilaterally discontinued raising capital in 2012/2013, (c) Mr. Howard had personally guaranteed to

³² United States Patent Publication number 20060130729, which was filed on December 20, 2004.

³³ Excerpt of Bench trial - Judge's Ruling, at time 02:08:24: "*That being said, it seems to me that what we've got here and why I've argued until -- not argued -- why I've suggested, as strongly as I could, that y'all need to figure out a way to go your separate ways, because the company has an obligation on which the statute of limitations has not run and may never run until funds come into the organization.*"

the Government of the United States on July 20, 2005 that "*in the event the company does not meet financial expectations, 1 will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage*"³⁴ (meaning Appellee's salary), and (d) since Appellee owns about 48% of Appellant's stock, going his "*separate way*" would entail that Appellant pay Appellee beforehand the million dollar or so that Appellant owes Appellee for his past due salaries and the reimbursement of past expenses, including legal.

Appellee attempted before the Final Judgement was rendered to caution both Appellant's Attorney and the District Court Clerk about paragraphs 1 to 3 by submitting alternate and legitimate wording, but to no avail.

APPENDIX 2: A plausible explanation for this frivolous lawsuit

Mr. Howard, who raised all the capital, mostly from his friends and family, discontinued further capitalization efforts in 2012/2013, despite fund raising being the principal if not unique reason for his being in the company in the first place.

³⁴ Doc. 138-1, page 71 of 77

Mr. Howard had only started to raise capital 3 years after company incorporation, despite Mr. Howard's original commitment in 2004 to start capitalization forthwith. During the 3 years period the company was funded exclusively by Appellee's personal funds³⁵. Appellee was never reimbursed of the substantial expense nor offered additional stock as consideration, and when he claimed reimbursement he was told by Mr. Howard that the Statute of Limitations had expired.

As for the period after 2012, company revenue consisted exclusively of payments which Appellee had caused a personal client of his to pay Appellant instead. The payments were for gruesome engineering and installation hard work that Appellee discharged in person and without any support from Appellant whatsoever, in various very challenging and insalubrious overseas environments. It was understood with Mr. Howard when Appellee offered to have his personal income paid to Appellant that Appellant would later reimburse Appellee, but Mr. Howard later changed his stance. Although Mr. Howard had committed to have his own personal revenue also paid to Appellant, he later equally changed his stance on that issue.

³⁵ About \$100,000 of Appellee's own funds

During said period, not only did Appellee never receive a cent of salary for his hard labor, and the company never expended a cent for related expenses, all travel expenses being paid by the client, but also Mr. Howard attempted in 2013 to substitute for the salary a high interest personal loan to Appellee for which a friend of Mr. Howard's and company stockholder is currently suing Appellee in France, despite (a) substantial income being returned to Appellant by Appellee during the period, and (b) Mr. Howard having committed to the U.S. Government to guarantee on his own personal assets all of Appellee's salaries, a guarantee that he never honored.

Meanwhile, Mr. Howard spent more than 75% of the capital he had raised purely on himself³⁶ and his own expenses, while he never returned one cent of revenue to the company, and then all but abandoned Appellee and the company to their own devices.

³⁶ In particular the \$77,000 annual salary Mr. Howard had unilaterally caused Appellant DeepGulf, Inc. to pay Mr. Howard for nearly 5 years despite his very limited workload and duties, the amount of which salary he had never communicated to Appellee until discovery, and therefore to the Board of Directors. Appellee first learned about the salary amount during discovery in an alleged (and certainly forged, like so many others) Board of Directors decision dated October 8, 2008, of which Appellee had never been apprised by Mr. Howard until a decade later.

After Appellee was forced to leave the U.S. because a new visa had not been provided by Appellant, Mr. Howard realized that he had to give investors some serious explanation for the sudden departure of the essential exiled President, who was also the only cash earner. He found in Appellee a convenient faraway and vulnerable scapegoat, so he sued him preemptively in Florida Circuit Court, at one time even absurdly pretending he had "*absconded*", in order to distract the shareholders whom he feared would rightfully sue Mr. Howard personally for the loss of their capital investment. Mr. Howard was certain Appellee would not answer the lawsuit, since Appellee was clearly outside the jurisdiction of the Court, and Mr. Howard knew that Appellee was at the time nearly destitute³⁷, severely depressed by the irrational dispute and his forced exile (see also section VIII-1), and could not afford legal counsel. However, *Pro Se* Appellee answered the lawsuit after removing it to U.S. District Court, filed a counterclaim, sued DeepGulf, Inc.'s two Directors personally in Florida Circuit Court, and later acknowledged Appellant's appeal.

³⁷ In the face of Mr. Howard's outlandish accusation that Appellee had stolen \$1,304,764.22, although without ever informing the whereabouts of the alleged spoil.



Marc Moszkowski, Pro Se

email: m.moszkowski@deepgulf.net

Phone: +1(850) 316 8462

Le Verdos

83300 Châteaudouble, France

RULE 32(g) CERTIFICATE OF TYPE-VOLUME COMPLIANCE

I HEREBY CERTIFY that this Brief is produced in Times New Roman 14-point type for the body and 13-point type for the footnotes, and contains 12,168 words, exclusive of those items set forth in Federal Rules of Appellate Procedure, Rule 32, Form of Briefs, Appendices, and Other Papers (f), in accordance with the type-volume limitations of Federal Rules of Appellate Procedure, Rule 32, Form of Briefs, Appendices, and Other Papers (a)(5-7).



Marc Moszkowski, Pro Se

email: m.moszkowski@deepgulf.net

Phone: +1(850) 316 8462

Le Verdos

83300 Châteaudouble, France

CERTIFICATE OF SERVICE

1 HEREBY CERTIFY that I have, on this 25th day of November 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

Marc Moszkowski, Pro Se

email: m.moszkowski@deepgulf.net

Phone: +1(850) 316 8462

Le Verdos

83300 Châteaudouble, France